

25TRCV00350 25TRCV00350

County: los-angeles

Division: Civil Law and Motion

Department: E

Hearing date: 2026-08-12

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Case Number: 25TRCV00350 Hearing Date: August 12, 2026 Dept: E

Superior Court of California

County of Los Angeles

Southwest District

Torrance Dept. E

JAY H.

ZIMMERMAN, as Co-trustee of the Zimmerman Trust of 1978, and as Coexecutor of the Estate of Stanley M. Zimmerman

Plaintiffs,

Case No.:

25TRCV00350

vs.

[Tentative]

Granted

HOMEPLUS

FINANCE CORPORATION, a California corporation; and DOES 1-20

Defendants.

Hearing

Date: August
12, 2026

Moving Parties: Defendant HomePlus Finance Corporation

Responding Party: Plaintiff Jay H. Zimmerman

HEARING: Motion to Compel Compliance

The Court considered the moving,
opposition, and reply papers.

RULING

The Court
grants the Motion to Compel Compliance.

BACKGROUND

On January 31, 2025, Plaintiff Jay
H. Zimmerman filed the Complaint against Defendant HomePlus Finance Company,
alleging causes of action for breach of promissory note, open book, account
stated, money had and received, and violations of the Corporations Code.

On May 5, 2025, Defendant served its
first set of Requests for Production of

Documents
on Plaintiffs.

On July 7, 2025, Plaintiffs served
their response to Defendant's discovery requests.

On June 18, 2026, Defendant served
the Motion to Compel Compliance with Responses to Requests for Production.

On July 30, 2026, Plaintiff filed
the Opposition.

On August 5, 2026, Defendant filed the Reply.

LEGAL STANDARD

The propounding party may file motions to compel further responses to requests for production if it believes the responses received are (1) evasive, (2) incomplete, or (3) if the objections raised are meritless or overly general. (Code Civ. Proc., § 2031.310, subd. (a

The burden is on the moving party to “set forth specific facts showing good cause justifying the discovery sought by the demand.” (Code Civ. Proc., § 2031.310, subd. (b)(1).) This burden “is met simply by a fact-specific showing of relevance.” (TBG Ins. Servs. Corp. v. Superior Court (2002) 96 Cal.App.4th 443, 448.) In response to a motion to compel further responses, the respondent bears the burden of justifying any objections. (Fairmont Ins. Co. v. Superior Court (2000) 22 Cal.4th 245, 255.)

DISCUSSION

Meet and Confer

A motion to compel must be “accompanied by a meet and confer declaration under Section 2016.040.” (Code Civ. Proc., § 2031.310 subd. (a).) Section 2016.040 states that “a meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt at an informal resolution of each issue presented by the motion.” (Code Civ. Proc., § 2016.040.)

Here, the parties have exchanged numerous meet and confer emails. Therefore, the Court finds that Defendant has satisfied the meet and confer requirements.

Defendant requests that the Court compel Plaintiff to comply with his RFP responses.

Timeliness

“Unless notice of this motion is given within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to which the demanding party and the responding party have agreed in writing, the demanding party waives any right to compel a further response to the demand.” (Code Civ Proc., § 2031.310 subdivision (c).) “If the party fails to make a production in accordance with its statement of compliance, the opposing party may file another motion to compel seeking compliance. No time limit is placed on such a motion.” (Board of Registered Nursing v. Superior Court (2021) 59 Cal.App.5th 1011, 1034.)

Here, the parties dispute whether the instant motion is a motion to compel further or a motion to compel compliance. A party can respond to a request for production with either a statement of compliance, a representation of inability to comply, or an objection. (Code Civ. Proc., § 2031.210.) An objection can only be attacked by a motion to compel further; a statement of compliance may be enforced with a motion to compel compliance.

Here, the discovery requests at issue were responded to with a litany of objections followed by the statement “Subject to and without waiving the foregoing objections, Defendant responds as follows: Plaintiff is informed and believes that all non-privileged Documents responsive to this Request already were produced to, or otherwise are in the possession, custody, or control of, or equally or superiorly available to, Defendant. To the extent any such Documents were not already produced to, or otherwise are not already in the possession, custody, or control of, or equally or superiorly available to, Defendant, Plaintiff will produce all such non-privileged Documents responsive to this Request on a mutually agreeable date.” The Court finds that this is a viable statement of compliance agreeing to produce documents at a later agreed-upon date. Thus, the instant motion is a Motion to Compel Compliance. However, as this is a valid Motion to Compel Compliance, Plaintiff must only produce the documents he agreed to produce, i.e., those not subject to his objections, not in the control of or equally available to Defendant, or not already produced. Last, while Plaintiff makes a res judicata argument, res judicata does not apply to interim discovery rulings. (People v. Scott (2000) 85 Cal.App.4th 905, 918.)

Therefore, the Court grants the Motion to Compel Compliance.

Sanctions

“Except as provided

in subdivision (d), the court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel compliance with a demand, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2031.320 subd. (b).)

Defendant requests that the Court impose sanctions on Plaintiff in the amount of \$ 18,417.50. However, the Court finds that Plaintiff had substantial justification to oppose the instant motion given the ambiguous language in the statement of compliance.

Therefore, the Court denies the request for sanctions.